

1.

CASE #	CASE NAME	HEARING NAME
CVPS2505727	STRAY DOG FURNITURE & DESIGN, INC. VS SCOTT	PLAINTIFF/CROSS-DEFENDANT STRAY DOG FURNITURE & DESIGN, INC.'S DEMURRER TO DEFENDANT/CROSS-COMPLAINANT JEFFREY SCOTT'S FIRST AMENDED CROSS COMPLAINT

Tentative Ruling: Plaintiff/cross-defendant Stray Dog Furniture & Design, Inc's demurrer to defendant/cross-complainant Jeffrey Scott's first amended cross-complaint (FACC) is SUSTAINED WITHOUT LEAVE TO AMEND in part and OVERRULED in part.

As to the FACC in its entirety, cross-defendant's demurrer is OVERRULED. Cross-defendant provides no legal analysis and cites no authority supporting this ground of its demurrer.

As to cause of action no. 2 of the FACC, cross-defendant's demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Cause of action no. 2 alleges a cause of action for common counts. The "essential allegations of a common count are '(1) the statement of indebtedness in a certain sum, (2) the consideration, i.e., goods sold, work done, etc., and (3) nonpayment.' " (*Farmers Ins. Exchange v. Zerin* (1997) 53 CA4 445, 460.) Among other things, this requires cross-complainant to allege that cross-defendant requested that he perform services for its benefit, that he did so, and that cross-defendant did not pay for those services. (CACI No. 371.) Here, however, cross-complainant is seeking to recover amounts he purportedly paid cross-defendant for services it performed. That is not a common count.

As to cause of action no. 3 of the FACC, cross-defendant's demurrer is SUSTAINED WITHOUT LEAVE TO AMEND. Cause of action no. 3 alleges a cause of action for violations of BPC 7159. There is no private right of action for damages under BPC 7159.

As to cause of action no. 4 of the FACC, cross-defendant's demurrer is OVERRULED. Cause of action no. 4 alleges a cause of action for the recovery of payments made to an unlicensed contractor. This requires cross-complainant to allege that he contracted with cross-defendant to perform demolition, tile, and plumbing work; that a valid license was required to perform such work; and that he paid cross-defendant for performing that work. (BPC 7031(b).) Cause of action no. 4 alleges all these elements.

Cross-defendant's challenges to these allegations are rejected. Exhibit D attached to the FACC does not show all moneys cross-complainant paid to cross-defendant have been returned, as cross-defendant asserts; for example, nothing in that exhibit shows that the \$1,353.34 cross-complainant paid cross-defendant on 1/2/2025 has been charged back to him. And Exhibit E attached to the FACC does not show cross-defendant was properly licensed, as it asserts; it merely shows cross-defendant had one type of license.

As to cause of action no. 7 of the FACC, cross-defendant's demurrer is OVERRULED. Cause of action no. 7 alleges a cause of action for fraud. This requires cross-complainant to allege that cross-defendant made a misrepresentation with the knowledge that its representation was false and the intent to induce reliance on it; that he justifiably relied on that representation; and that he was damaged. (*Hinesley v. Oakshade Town Center* (2005) 135 CA4 289, 294.) Each of these allegations must be pleaded with specificity. (*Lazar v. Superior Court* (1996) 12 C4 631, 645.)

Cause of action no. 7 sets forth, with significant detail, the various purportedly false representations cross-defendant made and on which cross-complainant relied. It also sets forth

the damages he allegedly incurred on top of those that were charged back to his credit card. That the FACC includes additional facts that may not form the basis for a fraud claim is not relevant at this stage of the proceedings.

Finally, as to cause of action no. 9 of the FACC, cross-defendant's demurrer is OVERRULED. Cause of action no. 9 alleges a cause of action for rescission/restitution. As set forth above, Exhibit D attached to the FACC does not show all moneys cross-complainant paid to cross-defendant have been charged back to his credit card.

2.

CASE #	CASE NAME	HEARING NAME
CVPS2505727	STRAY DOG FURNITURE & DESIGN, INC. VS SCOTT	PLAINTIFF/CROSS-DEFENDANT STRAY DOG FURNITURE & DESIGN, INC.'S MOTION TO STRIKE PUNITIVE DAMAGES FROM DEFENDANT/CROSS-COMPLAINANT JEFFREY SCOTT'S FIRST AMENDED CROSS COMPLAINT

Tentative Ruling: Plaintiff/cross-defendant Stray Dog Furniture & Design, Inc's motion to strike the punitive damages requests from defendant/cross-complainant Jeffrey Scott's first amended cross-complaint (FACC) is GRANTED. Nothing in the FACC alleges that one of cross-defendant's officers, directors, or managing agents "had advance knowledge of the unfitness of the employee and employed [them] with a conscious disregard of the rights or safety of others or authorized or ratified the wrongful conduct for which the damages are [requested] or was personally guilty of oppression, fraud, or malice." (CC 3294(b).) The punitive damages requests (p. 26, lines 4-6, and page 31, lines 24-26) are accordingly STRICKEN.

Cross-complainant's request for leave to amend is GRANTED. (*Atwell Island Water Dist. v. Atwell Island Water Dist.* (2020) 45 CA5 624, 635 [whether to grant leave to amend depends on whether there is a "reasonable possibility that the defect can be cured by amendment"]; *Courtesy Ambulance Service v. Superior Court* (1992) 8 CA4 1504, 1519, fn. 12 [abuse of discretion not to grant leave to amend where defect is curable].) Cross-complainant has 30 days to amend the FACC. (CCP 472a(d).) The amended cross-complaint shall include all amendments required by the court's 8/14/2026 orders on cross-defendant's demurrer and motion to strike. It shall also include the amended cover page that is the subject of cross-complainant's 7/31/2026 motion for leave to file a second amended cross-complaint.

3.

CASE #	CASE NAME	HEARING NAME
CVPS2508051	CITIBANK N.A. VS ESTRADA	MOTION TO VACATE DISMISSAL 664.6 AND ENTRY OF JUDGMENT UNDER TERMS OF STIPULATION SETTLEMENT BY CITIBANK N.A.

Tentative Ruling: No tentative ruling. The motion does not comply with Local Rule 3316C. Parties wishing to argue the motion are ordered to appear. Appearance may be telephonic.